

RENTLEAKS · BROKER NETWORK

The New York renter's broker playbook

Who pays a broker fee now, what your agreement has to say, and how to hire an agent for a fee you set — in three steps.

What's inside	The FARE Act in plain English · 12 questions to ask · a fee-cap worksheet · what a fair agreement looks like
Who it's for	Anyone renting in New York who wants someone on their side of the table
From	RentLeaks — all-in prices, honest fees, 30-day-plus homes

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Since June 2025, the fee is the hirer’s to pay

New York City’s FARE Act took effect on **11 June 2025**. The rule is simple: the person who hires the broker pays the broker. If a landlord hires an agent to list and show an apartment, that agent’s fee is the landlord’s — it can’t be passed to you. And every fee a renter does have to pay has to be spelled out, clearly, in the listing and in an itemised written disclosure you sign before the lease.

What the law did not do is ban hiring your own broker. That was always allowed, and it’s still the one situation where a renter pays a fee: you chose an agent to work for you, and you agreed the fee in writing first. This guide is about doing that well — what it should cost, what the agreement must say, and how to tell a good broker from an expensive one.

The one-line version

You never owe a fee for an apartment a landlord’s agent is listing. You may owe a fee to a broker *you* hired, if you sign a lease for a home they found or showed you — and only at the number you agreed in writing before the search started.

Who pays what, at a glance

The situation	Who pays the broker	What you should see
You answer a listing posted by the landlord’s agent	The landlord. No fee to you for that agent’s work.	The listing states the fees you’d pay (application, move-in, any others) clearly and up front.
You rent directly from an owner, no agent involved	Nobody. There is no broker fee.	An itemised written fee disclosure before you sign the lease.
You hire your own broker to search for you	You — at the fee you agreed in writing first.	A signed representation and fee agreement, before any viewing you’re charged for.
Your broker shows you a home their own brokerage lists for the landlord	The landlord. Your broker can’t charge you for it.	Written notice of the dual role before you see the home.

Penalties for charging a renter an unlawful fee start at \$1,000 for a first violation and rise from there, and renters can bring a case themselves. If an agent asks you for a fee on their own landlord listing, that is not a negotiation — it is a violation.

What hiring a broker actually costs

Rental broker fees in New York are quoted three ways: as **months of rent** (one month is the common shorthand), as a **percentage of the first year's rent** (12–15% was the old standard; one month works out to about 8.33%), or as a **flat fee**. They are all the same thing in different clothes. Convert before you compare.

Monthly rent	One month	12% of a year	15% of a year	Flat \$2,500
\$2,400	\$2,400	\$3,456	\$4,320	\$2,500
\$3,000	\$3,000	\$4,320	\$5,400	\$2,500
\$3,600	\$3,600	\$5,184	\$6,480	\$2,500
\$4,500	\$4,500	\$6,480	\$8,100	\$2,500
\$6,000	\$6,000	\$8,640	\$10,800	\$2,500

Set your cap before you talk to anyone

A cap is one number you decide in advance — “no more than one month’s rent”, “no more than 10% of the year”, “no more than \$2,500”. Brokers then propose *at or under* it, which turns an awkward negotiation into a simple comparison. On RentLeaks you set the cap in the brief, and a proposal above it can’t even be sent to you.

Worked example

A \$3,600 one-bedroom in Williamsburg. A broker proposes 0.75 months: **\$2,700**, due only when you sign the lease. Against 15% of the year (\$6,480) that is \$3,780 saved; against “one month” it is \$900. Two viewings arranged for a Saturday, an application filed the same evening and a lease signed on the Tuesday is what the money is for. If none of it happens, nothing is owed — no lease, no fee.

Your fee-cap worksheet

Fill this in	Yours
Top monthly rent I'll pay	\$ _____
Move-in date (and how flexible)	_____
Neighbourhoods, in order	_____
Cash I have for move-in (first month + deposit + any fee)	\$ _____
My broker-fee cap (months / % / flat)	_____
That cap in dollars, at my top rent	\$ _____

What a fair agreement says

A tenant representation and fee agreement should be short enough to read in one sitting. Ours runs to ten numbered sections; whoever you hire, look for these eight things.

- **Who's who.** Your name, the agent's name and licence number, their brokerage, and their supervising broker if they're a salesperson.
- **What they'll do.** The area, the kind of home, the budget and the dates — and that they're working for you, not the landlord.
- **How long it lasts and how to end it.** A fixed term (90 days is reasonable) and the right to end it by email, either side.
- **The fee, in one sentence.** The exact number or formula, earned only if you sign a lease for a home they found or showed you.
- **No lease, no fee.** Nothing due for viewings, advice, applications or time spent.
- **The landlord-listing carve-out.** No fee to you for homes their brokerage represents for the landlord, and written notice of any dual role before the viewing.
- **A tail, but a short one.** If the agreement ends, a fee can still be owed for a home they already showed you — 30 days is fair, six months is not.
- **Where your money goes.** Rent and deposits go to the landlord or its managing agent, against a signed lease — never to the broker's personal account, never before you've seen the home.

Walk away if...

...the fee is "standard, we'll sort it later"; the agreement is exclusive for six months with no way out; you're asked for a deposit, a holding fee or a "key fee" before you've seen the apartment or have a lease to sign; or a particular apartment is only available to you *if* you sign with them. That last one is prohibited.

12 questions to ask a broker

About the work	About the money
1. Which buildings in this neighbourhood do you actually work with?	7. What's your fee, in dollars, at my top rent?
2. How many renters like me did you place in the last three months?	8. When is it due, and what happens if I don't sign a lease?
3. How fast can you get me into a viewing this week?	9. Do you also list homes for landlords in this area?
4. Will you show me homes where you don't earn a fee?	10. What other costs should I budget for — application, move-in, deposit?

About the work	About the money
5. What does my application need to be competitive here?	11. Is anything owed after the agreement ends, and for how long?
6. Who else at your brokerage will I be dealing with?	12. Can I have the agreement in writing before we start?

Hire a broker in three steps

1 Tell us what you need Where, when, your budget and the kind of home — about two minutes. You set the most you'll pay a broker.	2 Pick your broker Up to three verified, licensed agents who work your area send a short pitch and a fee at or under your cap. You choose — or none of them.
3 Sign & search One clear agreement, signed in the app with a time-stamped record. Your broker takes it from there: viewings, applications, the lease.	4 Nothing owed to us RentLeaks is paid by the partner's brokerage out of its fee after a lease. It never increases what you pay, and we never collect rent, deposits or fees.

- **Your details stay yours.** Brokers see the home you want — area, budget, dates — not your name, email or phone, until you pick one.
- **Licence checked first.** Every partner's licence is verified with the state, and salespersons work under their supervising broker.
- **Fair housing, throughout.** Briefs describe the home, never the people. No steering, no preferences, no exceptions.
- **Signed electronically, properly.** Consent first, a copy for everyone, and a fingerprint of the document so nobody can change a word after the fact.

Start your search

Two minutes at rentleaks.com/hire-a-broker/ puts your brief in front of verified brokers in your area. Or reply to the email this guide came with and a person will help you set the brief.

Questions we get a lot are answered at rentleaks.com/hire-a-broker/#faq.

This playbook is general information about how rental broker fees work in New York City, not legal advice, and rules differ outside the city. Figures are worked examples, not offers. RentLeaks is a listing platform and a licensed referring brokerage; the broker you hire represents you under their own licence.